

Abdul Sattar v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 22 August 2017 · WRIT - C No. 37834 of 2017 · **Writ disposed; EE to decide 6.14 installment application in three weeks.**

HEADNOTE

A consumer seeking breathing time to pay electricity dues in installments was directed to apply to the Executive Engineer under Clause 6.14 of the U.P. Electricity Supply Code, 2005. The writ was disposed of without granting installments on merits; the Executive Engineer must pass an appropriate order within three weeks of presentation of a certified copy of the order.

FACTUAL SUMMARY

Abdul Sattar filed a writ petition in the Allahabad High Court against the State of Uttar Pradesh and the electricity department. At the outset of the hearing, his counsel submitted that the petitioner would be satisfied if the Electricity Department considered giving him some breathing time to discharge dues by paying in installments, rather than pressing any further relief in the writ.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

installment facility for electricity dues

HOLDING

Where the consumer seeks time to pay electricity dues in installments, Clause 6.14 of the U.P. Electricity Supply Code, 2005 is the statutory provision; the consumer may apply to the Executive Engineer, who shall pass an appropriate order within three weeks of presentation of a certified copy of the writ court's order. The High Court did not itself grant or refuse the installment facility. ¶ 1

PRINCIPLE TAGS

installment-payment-clause-6.14 Writ court channeled a request for breathing time on dues to the licensee's Clause 6.14 process instead of granting installments on the writ. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER IS ENTITLED TO INSTALLMENT FACILITY UNDER CLAUSE 6.14

Left to the Executive Engineer to decide on application. ¶ 1